SUBCONTRACT AGREEMENT (GLAZING AND CURTAIN WALL)

This Subcontract Agreement (the "Subcontract") is entered into as of June 2, 2025 (the "Effective Date") between **Calder & Webb Builders**, a California corporation, California Contractors State License Board ("CSLB") License No. 1037264 (Class B), with its principal office at 4410 North Fresno Street, Suite 300, Fresno, California 93726 ("Contractor"), and **Brightline Glazing Co.**, a California corporation, CSLB License No. 1052918 (Class C-17), with its principal office at 2875 South Cherry Avenue, Fresno, California 93706 ("Subcontractor").

Contractor has entered into a prime contract dated April 14, 2025 (the "Prime Contract") with **Fresno Community Health Partners** ("Owner") for construction of the **Kings Canyon Medical Office Building**, a three-story medical office building located at 6250 East Kings Canyon Road, Fresno, California 93727 (the "Project"). Contractor wishes to engage Subcontractor to perform a portion of the work under the Prime Contract, and Subcontractor wishes to perform that work, on the terms stated below.

In consideration of the mutual promises in this Subcontract, the parties agree as follows.

ARTICLE 1 — DEFINED TERMS

1.1 **"Subcontract Work"** means all labor, materials, equipment, engineering, supervision, transportation, testing and services required to complete the glazing, curtain wall, storefront and related work described in Article 3, together with all work reasonably inferable from the Subcontract Documents as necessary to produce the intended result.

1.2 **"Subcontract Documents"** means the documents listed in Article 2.

1.3 **"Subcontract Sum"** means the amount stated in Article 4, as adjusted by Change Orders.

1.4 **"Change Order"** means a written instrument signed by Contractor and Subcontractor that changes the Subcontract Work, the Subcontract Sum or the Subcontract Time.

1.5 **"Subcontract Time"** means the period for performance of the Subcontract Work established by the Project Schedule and Article 5.

1.6 **"Final Completion"** means the stage at which all Subcontract Work, including punch list items, testing, warranties, as-built drawings and closeout submittals required by the Subcontract Documents, has been completed and accepted by Contractor and the Architect.

1.7 **"Architect"** means Sierra Vale Architects, Inc., or any successor designated by Owner.

1.8 **"Lower-Tier Parties"** means all sub-subcontractors, suppliers, fabricators and equipment lessors of any tier who furnish labor, materials or equipment for the Subcontract Work through Subcontractor.

ARTICLE 2 — SUBCONTRACT DOCUMENTS

2.1 The Subcontract Documents consist of: (a) this Subcontract, including its Exhibit; (b) the Prime Contract, to the extent applicable to the Subcontract Work; (c) the Drawings and Project Manual prepared by the Architect, dated March 3, 2025, as listed in the Prime Contract; (d) Addenda Nos. 1 through 3; (e) the Project Schedule issued by Contractor, as updated; and (f) Change Orders issued after the Effective Date.

Fictional contract generated for the Groundwork demo. Not legal advice. No real parties.

2.2 Subcontractor assumes toward Contractor all obligations that Contractor assumes toward Owner under the Prime Contract with respect to the Subcontract Work. Contractor shall have the same rights and remedies against Subcontractor that Owner has against Contractor with respect to the Subcontract Work.

2.3 Subcontractor acknowledges that it has reviewed the Subcontract Documents and has had the opportunity to review the Prime Contract at Contractor's office. In the event of a conflict among the Subcontract Documents, the provision imposing the greater quantity, higher quality or more stringent requirement governs unless Contractor directs otherwise in writing.

ARTICLE 3 — SCOPE OF SUBCONTRACT WORK

3.1 Subcontractor shall furnish and install the following, complete and in accordance with the Subcontract Documents:

(a) Section 08 44 13, Glazed Aluminum Curtain Walls, including unitized curtain wall at the north and east elevations, anchors, embeds furnished for installation by others, perimeter sealants and sill flashings;

(b) Section 08 41 13, Aluminum-Framed Entrances and Storefronts, including ground floor storefronts, vestibule entrances, door hardware specified for aluminum doors, and integration with the automatic door operators furnished under Section 08 71 13;

(c) Section 08 63 00, Metal-Framed Skylights, at the second-floor lobby;

(d) Section 08 80 00, Glazing, including interior borrowed lites, fire-rated glazing at corridor assemblies, and glass for hollow metal frames furnished by others; and

(e) Section 07 92 00, Joint Sealants, to the extent sealants are part of or interface with the systems listed above.

3.2 Subcontractor's work includes delegated design and structural calculations stamped by an engineer licensed in California, shop drawings, samples, a full-scale field mockup, and field water testing as specified in Section 08 44 13.

3.3 Excluded from the Subcontract Work are window blinds and shades, steel embeds installed in concrete (Subcontractor furnishes layout and embed design only), and electrical power wiring to automatic door operators.

3.4 Subcontractor shall verify all field dimensions and existing conditions before fabrication and shall promptly report in writing any discrepancy between the Subcontract Documents and field conditions.

ARTICLE 4 — SUBCONTRACT SUM

4.1 Contractor shall pay Subcontractor for full and satisfactory performance of the Subcontract Work the sum of **Four Hundred Eighty-Five Thousand Dollars ($485,000.00)**, subject to additions and deductions by Change Order.

4.2 The Subcontract Sum includes all applicable taxes, permits required for the Subcontract Work, freight, hoisting not provided by Contractor, and all costs of compliance with the Subcontract Documents.

4.3 The Subcontract Sum is allocated among the line items shown in the Exhibit — Schedule of Values. The Schedule of Values will be used to evaluate applications for payment and may not be revised without Contractor's written approval.

ARTICLE 5 — TIME AND SCHEDULE

5.1 Subcontractor shall begin the Subcontract Work upon Contractor's written notice to proceed and shall perform it diligently in accordance with the Project Schedule, as updated by Contractor. Time is of the essence of this Subcontract.

5.2 Subcontractor shall submit shop drawings, calculations and samples within thirty (30) days after the Effective Date so that procurement lead times do not delay enclosure of the building.

5.3 Subcontractor shall provide sufficient labor, materials and supervision to maintain progress. If Subcontractor falls behind schedule for reasons within its control, Subcontractor shall, at its own cost, increase crew size, work overtime or take other measures necessary to recover lost time.

5.4 If Subcontractor is delayed by an act or omission of Contractor or Owner or by causes beyond Subcontractor's reasonable control, Subcontractor shall give written notice to Contractor within seven (7) days after the start of the delay. An extension of the Subcontract Time shall be Subcontractor's remedy for delay, except to the extent Contractor recovers delay damages from Owner on Subcontractor's behalf.

5.5 Subcontractor shall be liable to Contractor for liquidated damages assessed by Owner under the Prime Contract to the extent caused by Subcontractor's delay, and for Contractor's actual damages arising from that delay.

ARTICLE 6 — PROGRESS PAYMENTS

6.1 On or before the twenty-fifth (25th) day of each month, Subcontractor shall submit to Contractor an application for payment covering the Subcontract Work performed through the end of that month, itemized according to the Schedule of Values and supported by such documentation as Contractor reasonably requires.

6.2 Contractor shall include approved amounts from Subcontractor's application in Contractor's next application for payment to Owner.

6.3 **Contractor shall pay Subcontractor each progress payment within ten (10) days after Contractor receives payment from Owner for the Subcontract Work covered by that payment.** The parties agree in writing that this ten (10) day period applies to progress payments under this Subcontract in place of the period otherwise provided by California Business and Professions Code Section 7108.5.

6.4 The parties intend this Article to set the time for payment and not to make Owner's payment a condition precedent to Contractor's obligation to pay Subcontractor for Subcontract Work properly performed.

6.5 Each progress payment shall equal the value of Subcontract Work completed and approved, less the retention required by Article 7, less prior payments, and less any amounts withheld under Article 9.

6.6 **Contractor will not pay for materials or equipment stored on site or off site that have not been incorporated into the Work.** Only installed Subcontract Work will be included in progress payments.

6.7 Payment of a progress payment does not constitute acceptance of defective or nonconforming work.

ARTICLE 7 — RETENTION

7.1 **Contractor shall retain ten percent (10%) from each progress payment to Subcontractor.**

7.2 **Contractor shall release the retention to Subcontractor within ten (10) days after both of the following have occurred: (a) Final Completion of the Subcontract Work, and (b) Contractor's receipt of retention from Owner attributable to the Subcontract Work.**

7.3 Release of retention is subject to Subcontractor's delivery of the final lien and payment releases required by Article 8 and the closeout documents required by Article 10.

7.4 Retention withheld under this Subcontract shall be administered in a manner consistent with California Civil Code Sections 8810 through 8822 to the extent those sections apply to the Project.

ARTICLE 8 — LIEN AND PAYMENT RELEASES

8.1 **Before Contractor makes any progress payment, Subcontractor shall deliver to Contractor a conditional waiver and release on progress payment covering the amount of that payment.**

8.2 **Within five (5) days after receiving each progress payment, Subcontractor shall deliver to Contractor an unconditional waiver and release on progress payment covering the amount received.**

8.3 **Subcontractor shall obtain from each of its Lower-Tier Parties, and deliver to Contractor, conditional and unconditional waivers and releases corresponding to the amounts paid to those Lower-Tier Parties.** Subcontractor shall deliver Lower-Tier conditional waivers with each application for payment and Lower-Tier unconditional waivers with Subcontractor's next application for payment.

8.4 **All waivers and releases delivered under this Subcontract, whether by Subcontractor or by its Lower-Tier Parties, shall be in the statutory forms set out in California Civil Code Sections 8132, 8134, 8136 and 8138, as applicable.** Contractor may reject any waiver that is not in substantially the statutory form.

8.5 Before final payment and release of retention, Subcontractor shall deliver a conditional waiver and release on final payment, and within five (5) days after receipt of final payment, an unconditional waiver and release on final payment, together with corresponding final waivers from all Lower-Tier Parties.

8.6 Subcontractor shall promptly pay its Lower-Tier Parties all amounts due to them from payments received under this Subcontract. If any stop payment notice, mechanics lien or bond claim is filed by a Lower-Tier Party, Subcontractor shall cause it to be released or bonded within ten (10) days after written demand by Contractor.

ARTICLE 9 — WITHHOLDING, BACKCHARGES AND SETOFF

9.1 **Contractor may withhold from any payment an amount reasonably sufficient to cover the cost of correcting defective or nonconforming Subcontract Work that Subcontractor has not corrected.**

9.2 Contractor may also withhold from any payment amounts reasonably necessary to protect Contractor against: (a) claims filed or reasonably anticipated arising from the Subcontract Work; (b) Subcontractor's failure to pay Lower-Tier Parties; (c) damage to the work of others caused by Subcontractor; and (d) Subcontractor's failure to maintain progress under Article 5.

9.3 **Contractor may set off against any amount due to Subcontractor under this Subcontract all backcharges for costs Contractor incurs because of Subcontractor's failure to perform its obligations, including cleanup, protection, repair of damage, and work Contractor performs on Subcontractor's behalf.**

9.4 Before incurring a backcharge, except in an emergency, Contractor shall give Subcontractor written notice describing the deficiency and allowing Subcontractor forty-eight (48) hours to begin correction. Contractor shall provide Subcontractor with an itemized statement of each backcharge.

9.5 When the basis for a withholding has been eliminated to Contractor's reasonable satisfaction, Contractor shall pay the amount withheld with the next payment due to Subcontractor.

ARTICLE 10 — FINAL PAYMENT AND CLOSEOUT

10.1 Upon Final Completion, Subcontractor shall submit a final application for payment together with: (a) as-built drawings; (b) the warranties required by Article 12 and the Subcontract Documents; (c) operation and maintenance data for operable entrances and hardware; (d) attic stock as specified; (e) results of field water testing; and (f) the final waivers required by Article 8.

10.2 Final payment, including the balance of the Subcontract Sum and the release of retention, shall be paid in accordance with Article 7.2 and subject to Article 9.

10.3 Acceptance of final payment by Subcontractor constitutes a waiver of all claims by Subcontractor except those previously made in writing and identified as unsettled in the final application for payment.

ARTICLE 11 — CHANGES IN THE SUBCONTRACT WORK

11.1 Contractor may, without invalidating this Subcontract, order additions, deletions or other changes in the Subcontract Work. Subcontractor shall perform changed work only upon receipt of a Change Order or a written construction change directive signed by Contractor.

11.2 Subcontractor shall submit a written, itemized proposal for any change within seven (7) days after Contractor's request. Pricing shall include labor, material and equipment costs, with overhead and profit not exceeding the markups permitted to subcontractors under the Prime Contract.

11.3 If Subcontractor believes that any direction from Contractor constitutes a change, Subcontractor shall give written notice within five (5) days after receiving the direction and before performing the work. Failure to give timely notice waives Subcontractor's claim for adjustment.

11.4 Subcontractor shall not be entitled to an adjustment for changes for which Owner does not grant Contractor an adjustment, except to the extent the change was caused by Contractor.

ARTICLE 12 — WARRANTY AND CORRECTION OF WORK

12.1 Subcontractor warrants that the Subcontract Work will be of good quality, free from defects in materials and workmanship, and in conformance with the Subcontract Documents.

12.2 Subcontractor shall correct, at its own cost, any Subcontract Work found to be defective or nonconforming within one (1) year after Substantial Completion of the Project, or within any longer period required by the Subcontract Documents. Section 08 44 13 requires a ten (10) year system warranty against water infiltration, and Section 08 80 00 requires a ten (10) year warranty for insulating glass units against seal failure.

12.3 Subcontractor shall deliver manufacturer warranties naming Owner as beneficiary. The warranties in this Article are in addition to, and do not limit, any other rights of Contractor or Owner under law.

ARTICLE 13 — INSURANCE AND INDEMNITY

13.1 Before beginning work, Subcontractor shall furnish certificates of insurance showing: (a) commercial general liability coverage of not less than $2,000,000 per occurrence and $4,000,000 aggregate, including completed operations; (b) automobile liability of not less than $1,000,000 combined single limit; (c) workers' compensation as required by California law and employer's liability of not less than $1,000,000; and (d) umbrella or excess liability of not less than $5,000,000.

13.2 Contractor, Owner and Architect shall be named as additional insureds on Subcontractor's general liability, automobile and umbrella policies on a primary and noncontributory basis. Completed operations coverage shall be maintained for not less than three (3) years after Final Completion.

13.3 To the fullest extent permitted by law, including California Civil Code Section 2782, Subcontractor shall defend, indemnify and hold harmless Contractor, Owner and Architect from claims, damages, losses and expenses arising out of the performance of the Subcontract Work, to the extent caused by the negligence, recklessness or willful misconduct of Subcontractor or its Lower-Tier Parties. This obligation does not extend to claims caused by the active negligence or willful misconduct of an indemnified party.

ARTICLE 14 — SAFETY AND SITE CONDITIONS

14.1 Subcontractor shall comply with Contractor's site safety program, all Cal/OSHA regulations, and the injury and illness prevention program requirements of California law. Subcontractor shall designate a competent person on site at all times when its forces are working.

14.2 Subcontractor shall provide fall protection for all work at the building perimeter and shall coordinate use of Contractor's crane and hoist through Contractor's superintendent.

14.3 Subcontractor shall keep its work areas clean, remove its debris daily, and protect installed glass and finishes until acceptance.

ARTICLE 15 — DEFAULT AND TERMINATION

15.1 If Subcontractor fails to perform any obligation under this Subcontract and does not begin to cure the failure within three (3) working days after written notice from Contractor, and diligently complete the cure, Contractor may supplement Subcontractor's forces, perform the work itself, or terminate this Subcontract for default.

15.2 Upon termination for default, Subcontractor shall not be entitled to further payment until the Subcontract Work is complete. If the cost of completing the Subcontract Work exceeds the unpaid balance of the Subcontract Sum, Subcontractor shall pay the difference to Contractor.

15.3 Contractor may terminate this Subcontract for convenience upon written notice. In that case, Subcontractor shall be paid for Subcontract Work properly performed through the termination date, plus reasonable demobilization costs and reasonable overhead and profit on work performed, but not anticipated profit on unperformed work.

15.4 If Owner terminates the Prime Contract, Contractor may terminate this Subcontract, and Subcontractor's recovery shall be limited to the amount Contractor recovers from Owner on Subcontractor's behalf.

ARTICLE 16 — DISPUTES

16.1 Subcontractor shall submit any claim to Contractor in writing within fourteen (14) days after the event giving rise to the claim, with supporting documentation.

16.2 To the extent a claim involves acts or omissions of Owner, Subcontractor agrees to be bound by the dispute procedures of the Prime Contract, and Contractor shall present Subcontractor's claim to Owner in Contractor's name at Subcontractor's expense.

16.3 Disputes solely between Contractor and Subcontractor that are not resolved by negotiation within thirty (30) days shall be submitted to non-binding mediation in Fresno County. If mediation fails, either party may file suit in the Superior Court of California, County of Fresno.

16.4 Subcontractor shall continue to perform the Subcontract Work during the pendency of any dispute, and Contractor shall continue to make undisputed payments.

ARTICLE 17 — GENERAL PROVISIONS

17.1 **This Subcontract is governed by the laws of the State of California.**

17.2 Subcontractor shall not assign this Subcontract or subcontract any portion of the Subcontract Work without Contractor's prior written consent.

17.3 Subcontractor represents that it holds, and will maintain throughout performance, a valid CSLB license in the classification required for the Subcontract Work, and that it is registered with the California Department of Industrial Relations as required by law.

17.4 Notices shall be in writing and delivered by hand, by overnight courier or by email with confirmation of receipt to the addresses stated in the preamble, or to another address a party designates in writing.

17.5 This Subcontract, including the Subcontract Documents, is the entire agreement between the parties regarding the Subcontract Work and supersedes all prior proposals and negotiations. It may be amended only by a written instrument signed by both parties.

17.6 If any provision of this Subcontract is held unenforceable, the remaining provisions remain in effect, and the unenforceable provision shall be enforced to the maximum extent permitted by law.

17.7 No waiver of any breach is a waiver of any other breach. The rights and remedies in this Subcontract are cumulative.

In witness whereof, the parties have executed this Subcontract as of the Effective Date by their duly authorized representatives.

CALDER & WEBB BUILDERS By: _____ Name: Margaret A. Calder Title: President Date: _____

BRIGHTLINE GLAZING CO. By: _____ Name: Daniel R. Okafor Title: Vice President, Operations Date: _____

EXHIBIT — SCHEDULE OF VALUES

Item	Description	Specification Section	Value
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1	Mobilization, bonds and submittals	01 33 00	$18,000.00
2	Delegated design, engineering and shop drawings	08 44 13	$32,000.00
3	Unitized curtain wall – materials (installed)	08 44 13	$142,000.00
4	Unitized curtain wall – installation labor	08 44 13	$96,000.00
5	Aluminum storefronts and entrances	08 41 13	$58,000.00
6	Interior glazing, borrowed lites and fire-rated glazing	08 80 00	$56,000.00
7	Metal-framed skylight at second-floor lobby	08 63 00	$34,000.00
8	Perimeter sealants, flashings and joint sealants	07 92 00	$26,000.00
9	Field mockup and water testing	08 44 13	$14,000.00
10	Closeout, warranties, O&M data and as-builts	01 77 00	$9,000.00
	Total Subcontract Sum		**$485,000.00**